

ELIZABETH II



1974 CHAPTER xiv

An Act to amend the University of Bristol Act 1960; and
for other purposes. [9th July 1974]

WHEREAS the University of Bristol (hereinafter referred to as “ the University ”) was established and incorporated by royal charter dated 24th May, 1909, with faculties and powers as therein provided and by the University of Bristol Act 1909 the property of University College Bristol previously existing 1909 c. xlii. in the city of Bristol was transferred to the University:

And whereas the University enjoys the benefit of numerous endowment funds the investments of which are held by and in the name of the University:

And whereas the University of Bristol Act 1960 made provision 1960 c. xxvi. for the pooling of the investments belonging to the endowment funds held by the University and as to their investment:

And whereas the council of the University have in pursuance of the said Act of 1960 set up two investment pools known as “ the trustee securities pool ” and “ the general pool ”:

And whereas it is expedient to make further provision with regard to the investment of moneys for the time being in the said trustee securities pool:

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the University of Bristol Act 1974.

Amendment
of
University of
Bristol Act
1960.

1960 c. xxvi.

2. The University of Bristol Act 1960 shall have effect subject to the following amendments:—

(1) in section 2 (Interpretation)—

(a) in the definition of “investment unit”, after the word “the” in the fourth place where it occurs, there shall be inserted the word “nominal”;

(b) for the definition of “trustee securities” there shall be substituted the following:—

“‘trustee securities’ means securities in which trustees are for the time being authorised by law to invest trust property;”;

(2) in section 4 (Administration of the investment pools)—

(a) for subsection (1) there shall be substituted the following subsection:—

“(1) Any amount of money for the time being in the trustee securities pool and available for investment shall be invested in the name of the University in any manner authorised by section 1 of the Trustee Investments Act 1961 as if the trustee securities pool were a trust fund:

1961 c. 62.

Provided that—

(a) in its application to the powers of investment conferred by the said section 1, section 2 of the said Act of 1961 shall have effect subject to the provisions of subsection (8) of this section as if—

(i) in subsection (1) of that section for the words ‘the parts being, subject to the provisions of this Act, equal in value at the time of the division’ there were substituted the words ‘the value of the wider-range part at the time of the division bearing to the then value of the narrower-range part the proportion of two to one’;

(ii) in paragraph (b) of subsection (3) of that section for the words ‘each part of the fund is increased by the same amount’ there were substituted the words ‘the wider-range part of the fund is increased by an amount which bears to the amount by which the narrower-range part of the fund is increased the proportion of two to one’;

(b) nothing in section 3 or section 4 of the said Act of 1961 shall apply to the exercise of the powers of this Act.”;

(b) in subsection (6), for the words “section 9 (Authorised securities) of this Act” there shall be substituted the words “the Trustee Investments Act 1961 c. 62. 1961, as modified by subsection (1) of this section”;

(c) after subsection (7) there shall be inserted the following subsection:—

“(8) If and whenever the Treasury by order under subsection (1) of section 13 of the said Act of 1961 prescribe a proportion greater than two to one, subsection (1) of this section shall be amended by the substitution, in paragraph (i) and in paragraph (ii) of proviso (a) thereto, of that proportion for the proportion of two to one.”;

(3) in subsection (2) of section 6 (Apportionment of income from pooled investments), for the words “four per centum upon” there shall be substituted the words “such percentage as the council may by resolution from time to time determine of”;

(4) in section 7 (Increase or reduction of value of investment unit)—

(a) in subsection (1), after the word “total” in the first place where it occurs, there shall be inserted the word “nominal”;

(b) in subsection (2), after the word “initial”, there shall be inserted the word “nominal”.

3. The enactment specified in the Schedule to this Act is Repeal. hereby repealed to the extent specified in the third column of that Schedule.

4. The costs, charges and expenses of and incidental to the Costs of Act. preparing for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the University of Bristol out of the general funds of the University.

SCHEDULE**ENACTMENTS REPEALED**

Chapter	Short title	Extent of repeal
1960 c. xxvi	The University of Bristol Act 1960	In section 2 (Interpretation), the definitions of "commercial investments" and "authorised securities". Section 9 (Authorised securities).



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